

6. **S-CV-0050979 Pearson, James v. Kaiser Foundation Hospitals**

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. ("Kaiser defendants") move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

Evidentiary Rulings

Preliminarily, the court observes the motion appears to be supported by insufficient notice, as it was filed and served with 81 days' notice without accounting for two additional court days for electronic service. (Code Civ. Proc., §§ 437c, subd. (a)(2); 1010.6(a)(2)(B).) In light of the parties' June 30, 2026 stipulation that electronic service constitutes personal service for the purpose of this motion, there is no defect in notice and the court will reach the merits of the motion.

Defendants' request for judicial notice is granted. As to exhibit F, the court takes judicial notice of the fact of filing but not of the arguments contained therein.

Plaintiff's request for judicial notice is granted.

Plaintiff's objections, submitted only in the responsive separate statement, are overruled for failure to comply with rule 3.1354(b) of the California Rules of Court.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Kaiser defendants present evidence that plaintiff lost his leg as a child and uses a prosthetic leg which requires periodic charging using a three-foot long cord. (SSUMF Nos. 1–4.) When plaintiff is not using the prosthetic leg, he relies on crutches or ambulates by a hop to get very short distances. (SSUMF No. 5.) On May 8, 2020, plaintiff went to the Kaiser Permanente Roseville Medical Center because he was having thoughts of self-harm. (SSUMF No. 6.) Plaintiff was admitted and escorted to a patient room in the emergency department, a security guard was posted outside of his room, and his personal belongings were taken from him except for his prosthetic leg. (SSUMF Nos. 7–9, 12.) In the evening, plaintiff told the security guard his prosthetic leg needed to be charged; as the three-foot charging cord could not be left in plaintiff’s room for safety concerns, a nurse collected his leg from him. (SSUMF Nos. 13–15.) Plaintiff told the nurse he needed his leg to walk. (SSUMF No. 17.) Plaintiff went to sleep and during the night, plaintiff twice had to use the restroom, located in the hallway, while his prosthetic leg was still charging. (SSUMF Nos. 10, 18, 21.) Plaintiff hopped to the doorway and told the security guard he needed to use the restroom; the security guard responded, “go ahead.” (SSUMF Nos. 22–23.) Each time, plaintiff hopped approximately ten hops to reach the restroom and then hopped back. (SSUMF Nos. 27–29.) The only individuals who observed plaintiff hopping to the restroom and back were two different security guards. (SSUMF Nos. 29, 31.) Plaintiff did not ask anyone for his prosthetic leg or another mobility device, did not ask anyone for assistance, or otherwise voice any difficulties accessing the restroom. (SSUMF Nos. 24–25, 32–33.) The fully charged prosthetic leg was returned to plaintiff the next morning. (SSUMF No. 34.) Plaintiff had no difficulty accessing any other part of the Kaiser Permanente Roseville Medical Center when he had his prosthetic leg and plaintiff does not challenge the physical structure of the facility. (SSUMF Nos. 35–36.)

To prevail on a violation of Title III of the ADA, the first cause of action, plaintiff must show (1) he has a disability, (2) defendant is a private entity that owns, leases, or operates a place of public accommodation, (3) defendant employed a discriminatory policy or practice, and (4) defendant discriminated against the plaintiff based upon the plaintiff’s disability by (a) failing to make a requested reasonable modification that was (b) necessary to accommodate the plaintiff’s disability. (*Karczewski v. DCH Mission Valley LLC* (9th Cir. 2017) 862 F.3d 1006, 1010.) A plaintiff must generally request the accommodation. (*Ibid.*) Here, while plaintiff told a nurse he needed his leg to walk (SSUMF No. 17), defendants’ evidence shows he did not request an accommodation to the security guards or nurses at Kaiser Roseville Medical Center during his stay. (SSUMF Nos. 23–25, 32–33.)

Plaintiff argues because his disability is “open, obvious, and apparent,” he is not required to request an accommodation. (*Windham v. Harris Cty.* (5th Cir. 2017) 875 F.3d 229, 237.) This court has considered this argument before, first at the pleading stage (Ruling on submitted matter, Nov. 21, 2024) and then to deny plaintiff’s motion for summary adjudication (Ruling on submitted matter, Dec. 19, 2025). As this court previously pointed out, plaintiff had not provided any authority showing the limited “open, obvious, and apparent” exception applies to Title III claims such as his. Now, plaintiff presents three Title III cases he argues show the “open, obvious, and apparent” exception apply in

this context: *Brady v. Evangelical Lutheran Good Samaritan Society* (E.D. Tex. Oct. 2, 2023) 2023 WL 6393882, *Muse v. Home Depot United States* (Dist. Haw. Nov. 7, 2006) 2006 U.S. Dist. LEXIS 110916, and *Asselin v. Shawnee Mission Med. Ctr.* (D. Kan. 1995) 894 F.Supp. 1479. The *Asselin* case does not apply here because it involves a plaintiff who repeatedly requested an accommodation and the opinion makes no reference to the “open, obvious, and apparent” exception. The other two cases are “citable as persuasive, although not precedential, authority.” (*Haligowski v. Super. Court* (2011) 200 Cal.App.4th 983, fn. 4, internal quotation marks and citations omitted.) The court declines to rely on persuasive authority to extend to Title III cases the limited “open, obvious, and apparent” exception without any mandatory, precedential authority. As plaintiff has provided none, this argument fails. Plaintiff also urges the court to consider the legislative history behind Title III. However, the statutory language is not ambiguous so as to trigger such an analysis. Based on the foregoing, defendants met their initial burden as to the first cause of action.

To establish a violation of the California Disabled Persons Act, the second cause of action, a plaintiff must prove either that the ADA was violated or that plaintiff was denied equal rights of access to public places and places of public accommodation. (*Jankey v. Lee* (2012) 55 Cal.4th 1038, 1044–45; Civ. Code, § 54.1, subd. (d).) To the extent plaintiff’s claim under the California Disabled Persons Act relies on a violation of the ADA, defendants have met their initial burden for the same reasons as described above. (SSUMF Nos. 23–25, 32–33.) Moreover, defendants’ evidence shows plaintiff encountered no architectural barriers nor was he denied equal rights of access to the Kaiser Permanente Roseville Medical Center as enjoyed by non-disabled members of the public. (SSUMF Nos. 35–36.) Defendants have met their initial burden as to the second cause of action.

To establish a violation of the Unruh Civil Rights Act, the third cause of action, a plaintiff must prove either that the ADA was violated or intentional discrimination. (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661.) To the extent plaintiff’s claim under the Unruh Civil Rights Act relies on a violation of the ADA, defendants have met their initial burden for the same reasons as described above. (SSUMF Nos. 23–25, 32–33.) To the extent plaintiff’s claim is based on intentional discrimination, there are no such allegations in the second amended complaint and the evidence does not support intentional discrimination. Defendants have met their initial burden as to the third cause of action.

Accordingly, Kaiser defendants sufficiently met their initial burden of showing entitlement to judgment and the burden shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a responsive separate statement of material facts and a separate statement of three additional material facts. Despite these efforts, plaintiff’s evidence falls short of his burden of showing any disputed material facts.

Based on the foregoing, Kaiser defendants’ motion for summary judgment is granted.